

22SMCV01124 22SMCV01124

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Case Number: 22SMCV01124 Hearing Date: August 21, 2026 Dept: M

CASE NAME: WW Westwood LP,
v. Zakhor, et al.

CASE NO.: 22SMCV01124

MOTION: Motion
for Attorneys' Fees

HEARING DATE: 8/21/2026

Legal
Standard

With respect to attorney fees and costs, unless they are specifically provided for by statute (e.g., CCP §§ 1032, et seq.), the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. (CCP § 1021.) The prevailing party on a contract, which specifically provides for attorney fees and costs incurred to enforce the agreement, is entitled to reasonable attorney fees in addition to other costs. (Civ. Code § 1717(a); CCP §§ 1032, 1033.5(a)(10)(A).) The court, upon notice and motion by a party, shall determine the prevailing party and shall fix, as an element of the costs of suit, the reasonable attorney fees. (Civ. Code § 1717(a), (b).) Any notice of motion to claim attorney fees as an element of costs under shall be served and filed before or at the same time the memorandum of costs is served and filed; if only attorney fees are claimed as costs, the notice of motion shall be served and filed within the time specified in CRC 3.1700 for filing a memorandum of costs. (CRC 3.1702; Gunlock Corp. v. Walk on Water, Inc.

(1993) 15 Cal.App.4th 1301, 1303, fn. 1.)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion. [Citation.]" (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623 624.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) "[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Margolin v. Reg'l Planning Comm'n (1982) 134 Cal.App.3d 999, 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49 [discussing factors relevant to proper attorneys' fees award].) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award." (Mountjoy v. Bank of Am. (2016) 245 Cal.App.4th 266, 271.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. (Premier Medical Management Systems, Inc. v. California Ins. Guaranty Assoc. (2008) 163 Cal.App.4th 550, 564.) General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (Ibid.)

Analysis

Plaintiff W.W. Westwood, L.P. moves for an award of reasonable attorneys' fees and costs against Defendant Mansour Zakhor, D.D.S. Plaintiff seeks attorneys' fees in the sum of \$579,111.00 and legal costs in the sum of \$27,645.19.

There is no reasonable dispute that Plaintiff is the prevailing party in this contract action, and that the operative lease contract has an attorney's fees clause. (Griffin Decl., Ex. B, ¶ 24.27.)

Furthermore, Plaintiff meets its initial burden demonstrating its lodestar fees of \$579,111.00 by presenting counsel's verified billing records, including an itemized breakdown of each task performed in month-by-month invoices. (Griffin Decl., ¶ 36, Ex. G.) Plaintiff shows that its counsel charged reasonable rates throughout the litigation, considering their education, training and experience, as well as the prevailing market rates in this jurisdiction. (Id., ¶ 39.a-g.) Plaintiff demonstrates that counsel billed at least 812.60 hours over the course of this more than four year dispute at various reasonable rates. Plaintiff reasonably litigated the issues, including by:

- ⌚ Evaluating the case and exchanging pre-litigation correspondence with Defendant's counsel regarding damage to the Premises;

- ⌚ Developing a litigation strategy;

- ⌚ Assessing potential claims and drafting the Complaint;

- ⌚ Drafting correspondence and conferring with opposing counsel about case management and settlement;

- ⌚ Assessing and drafting multiple sets of discovery;

- ⌚ Responding to Defendant's discovery;

- ⌚ Researching, analyzing, and drafting motions to compel initial responses to Plaintiff's written discovery and Defendant's appearance at the noticed deposition;

- ⌚ Reviewing Defendant's discovery responses and document productions and meeting and conferring on the same;

- ⌚ Researching, analyzing, and drafting oppositions to Defendant's various motions and ex parte applications seeking, among other

things, leave to file a cross-complaint, relief from deemed admissions, and continuances of the trial date, including preparing for and arguing at the hearings on the foregoing motions;

¿ Assessing Defendant's cross-complaint;

¿ Researching, analyzing, and drafting Plaintiff's demurrer to Defendant's cross-complaint, which was ultimately dismissed;

¿ Attending multiple pre-trial conferences and ex parte hearings;

¿ Attending multiple Mandatory Settlement Conferences;

¿ Taking and defending depositions;

¿ Preparing for and attending trial, including preparing joint trial documents;

¿ Drafting trial motions;

¿ Drafting and responding to post-trial motions, including Defendant's objection to the tentative statement of decision, Defendant's objection to Plaintiff's proposed judgment, and Defendant's motion for new trial; and

¿ Preparing and filing a memorandum of costs and the instant motion for attorneys' fees.

(Id. ¶¶ 4-36.)

The only item of unearned fees that the Court independently recognizes would be \$6,995.00 for the anticipated review of the opposition, reply, preparation for the hearing, and attending the hearing. (Griffin Decl., ¶¶ 38-40.) Plaintiff did not submit a reply brief, thus counsel did not incur that full fee. Defendant did present a late opposition, more fully discussed below, and Plaintiff's counsel presumably reviewed that opposition in preparation for the instant hearing. But since Plaintiff did not submit a reply, the full fee is not reasonably incurred. The Court will therefore deduct \$3,060.00 from the total award.

Defendant submitted a tardy opposition, filed after the deadline for a reply. Defendant does not provide an adequate explanation for its failure to oppose on time. Defendant admits that it was properly served via email on at least co-counsel Tailtelman. (Berokim Decl., ¶¶ 6-8.) Defendant's tardy opposition prevented Plaintiff from an opportunity to reply. The Court therefore has the discretion to decline consideration of the opposition. However, even if the Court considers the opposition, Defendant fails to show that Plaintiff is not entitled to its full attorneys' fees for the entire action. Accepting Defendant's premise that Plaintiff prosecuted the majority of this action on a distinct agreement from the agreement that Plaintiff ultimately prevailed upon, the work performed throughout the entire litigation was interrelated and involved a common core of facts or related legal theories. (*Abdallah v. United Savings Bank*, (1996) 43 Cal. App. 4th 1101, *Douglas E. Barnhart, Inc. v. CMC Fabricators, Inc.*, (2012) 211 Cal. App. 4th 230.) Thus, Plaintiff would be entitled to its full fee, without apportionment, even if Plaintiff changed the precise operative agreement during trial. Defendant otherwise does not argue that any particular hours spent by counsel were excessive or unreasonable.

Plaintiff presents a verified memorandum of costs. Defendant failed to oppose the costs or file a motion to strike/tax the memorandum of costs. Costs are therefore fixed as a matter of law.

Accordingly, the motion is GRANTED.

Fees are awarded in the total amount of \$576,051.00. Costs are awarded in the noticed amount of \$27,645.19.